

25SMUD02217 25SMUD02217

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-25

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The matter is here on dueling motions by the parties. Plaintiff wants to take action because the

housing subsidy was not reinstated earlier, but defendant states that if there

is no reinstatement, defendant will not need to start paying until 8/22.

Defendant's recollection is not quite consistent with the

settlement's language. The settlement

requires that defendant's subsidy is to be reinstated by August 6 (changed from

August 1), and money applied no later than August 22 (changed from August

15). That means that the agreement with

the VA is to be in place by August 6, and payments received and applied by

August 22. The dates were changed at

defendant's request to give defendant more time, but those changes were as set

forth above. Plaintiff's theory is that

the subsidy was not in fact reinstated in time, and therefore plaintiff is

entitled to possession—not because of misconduct by defendant, but because the

subsidy is not in place and retroactively applied. Defendant states, however, that the parties

all met with the VA and that the VA has agreed to restore the subsidy effective

September 2. Defendant claims he relied

on that, and that he is fully prepared to ensure that plaintiff is fully paid

for all rent.

The court will inquire.

If in fact there is an agreement with the VA to restore the subsidy but

it is not effective until September 2, that is a technical breach because

plaintiff is right that the agreement needed to be in place by August 6. But there remain two questions. The first is whether plaintiff led defendant

and the VA to believe that a September 2 date would be sufficient. If so, that conduct might be sufficient to

waive the August 6 deadline. Second, if

the subsidy is really going to be reinstated by September 2, is that a material

breach? The court is not saying no, but

it is saying that it is unsure.

Right now, the court is in the middle of a jury trial. The court will not be able to hold a

significant hearing on this today. The

court will discuss a continuation date to allow the parties to respond to this

issue. Further, the court will at least

inquire whether defendant has in fact started paying the money back to

plaintiff as defendant states he was required to do as of August 22 (which has

now passed).